

ANS 181 CITEZESTHP EDUCATION

CHAPTER ONE;

GOV, POLITICAL PARTIES & ELECTION

1.1

THE NEED FOR GOVERNMENT

Government are necessary to maintain law and order, because laws are essential for society to function. It provides safety and security for its people, in fact this is considered as the primary function; or need of a government to the people. Government is responsible for providing infrastructure like building, construction and maintenance of roads, hospitals, schools and other social amenities.

1.2 THE VARIOUS SYSTEMS OF GOVERNMENT

The system of government refers to the governance arrangements that allocate powers among the arms of government. The following are the various systems of government.

DEMOCRACY: As described by Abraham Lincoln, democracy is a government of the people, by the people and for the people. However, Cohen et al (1982) have pointed out that a major flaw with this definition is the fact that the people can never all be in government at a given point in time. However, they offered an alternative definition of democracy as a system of government where the people rule, either directly or through representatives.

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elected by a majority of them.

MONARCHY: a monarchy is a form of government in which a person, the monarch, is the head of the state for life or until abdication.

The succession of monarchs has mostly been hereditary, often building dynasties. However, elective and self-proclaimed monarchies have also often occurred throughout history.

Monarchs can carry various titles such as Emperor, Empress, King and Queen. Monarchs were the most common form of government until the 20th Century by which time republics had replaced many monarchies. Today, forty-three sovereign nations in the world have a monarch.

Communism: - this is a unique system of socio-political organisation whereby all forms of ownership and control of the means of production and distribution of goods and services are controlled by the state or community as a whole. With this system of government, individual citizens do not own property. Indeed, this system of government makes it very difficult for the bourgeoisie to operate the self-centred economy that enslaves the masses and the less privileged.

CAPITALISM: In this type of socio-political

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and economic organisation ^{where} individuals are free to invest, set up, control and manage private firms or enterprises of their choice in any part of the society with their means of production and also make profits as desired. Since Capitalism centres mostly on acquisition of wealth, it allows private investment and extreme individualism, encourages discoveries, quick development and improvement. However, it does not go without disadvantages. There is gross injustice in the organisation and distribution of wealth, money is been valued above human life, workers are enslaved by the rich, unemployment and all forms of social injustice prevail.

FEBATISM - Under this system of government, the political position or the ability of an individual is determined by the quality and quantity of land he owns. The landlords controlled lots of political powers and had great influence on the tenants who paid homage and rendered services to them. The landlords extract revenue from the tenants. With this system of government, the public duties which the citizens (tenants) ought to have rendered to the state were paid to the individual landlords.

This system brought about socio-economic minded, and political inequalities among citizens of a given society. This unhealthy situation unveiled

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and enforced the unhealthy stature of all forms of injustice, tribal and intragroup conflicts, bloodshed, hatred, confusion and all forms of instabilities.

TOTALITARIANISM: This is the system of government that is anti democracy and individualism, allows all respect of life of the state and that of the citizens to be controlled by the government. It maintains a government based monopoly of power and government's control of ~~life~~ lives and properties in a given society or state.

There are some peculiar features of this system of government

- Everybody belongs to one political party often seen as the state party
- The entire mass media are controlled by the government
- Government establishes only one ideology and enforces it on all citizens to adhere strictly to.
- The government decides the type of economy to run, plans, directs and regulates it in all aspects of people's life.

AUTOCRACY: an autocracy is a system of government in which one person (an autocrat) holds and controlled all political, economic, social and military power. The autocrat's rule is not unlimited and absolute and is

not subject to any legal or legislative limitation. In autocracy, all leaders are not selected through force. In some cases it is voluntary

like a dictatorship is by definition an autocracy, in dictatorship leaders possess absolute power which is mostly obtained through force. The major characteristic of dictatorship are that the leaders involve fight democracy at all cost, oppress the citizens and stifle the media in order to get their way.

1.3 FORMS OF GOVERNMENT

UNITARY GOVERNMENT

A unitary government is a form of government where all the powers and authority of government are concentrated in a central government. This type of government does not allow proper separation of power within three organs of government. Hence, this one central national government which creates provinces, regions or districts as the case may be, determines their operations and powers as well as ~~the~~ could abolish them existence or alter their functions.

However, for this type of government to smoothly operate, the countries population must be small, with homogeneous culture, ethnicity, race and religion and citizens must show their willingness and readiness to shun their differences. Moreover they exist

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FEDERALISM

This is a form of government where power is shared between the Centre and other levels of government (State and local government). With this system, the Constitution defines the roles and power of all the three and sufficiently provides for them. This type of government allows for proper separation of powers.

There are certain conditions that facilitate the formation of federalism. They include

- A unanimous interest and agreement of political units or states to come together and form a common government.

- Availability of resources to run the federation, these resources are evenly distributed.

- Large size/population of the federated state.

- No fear of the domination of a particular political unit (state).

CONFEDERATION

In this system of government, each of the unit that make up the government maintains its sovereignty. Indeed, the central government is weak, with greater powers at the region or states. It is observed that the confederated states have varied interests hence there is the safety of the autonomy of the confederated states. This system favours the smaller states who share and enjoy greater political strength.

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without losing their identity and of course this type of government provides adequate protection from external invasion for all the federated states.

PRESIDENTIAL:

It is a system in which both the executive and non-executive powers of the state are vested in one hand known as "president". In other words, the presidential system of government allows the president to be both the head of government and the head of state. Thus, he combines the executive and ceremonial powers. However, this system permits separation of powers among the three organs of government (executive, legislature and judiciary) the president has a lot of powers in his disposal. For instance, he can appoint and dismiss members within his Cabinet without effortful explanation to any quarters.

PARLIAMENTARY

This is a democratic form of government in which the party with the greatest representation in the parliament (legislature) forms the ~~parliament~~ government, its leader becoming prime minister or chancellor. Executive functions are exercised by the members of the parliament appointed by the prime

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minister for the Cabinet. The parties in the minority serve in opposition to the majority and have the duty to challenge it regularly. Prime minister may be removed from power whenever they lose the confidence of the majority of the ruling party of the parliament.

1.4 FUNCTIONS OF GOVERNMENT

Government generally exists to carry out the following functions.

- (1) To govern the country and provide security
- (2) To provide and run public utilities such as water and electricity, and infrastructure like housing, roads, railways, airports and seaports, telecommunication etc
- (3) To provide social services like education and healthcare
- (4) To create employment, redistribute income and
- (5) To promote policies and programmes that engender economic growth, national security and overall socio-economic wellbeing of every citizen.

1.5 PROCESSES OF AN ELECTION

Man is a group being. At one point or the other in his life, he belongs to various groups. Human groups are known for distinct features

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like; leadership, division of labour, social interaction etc and the tallest among these features is "Leadership", a position of influence

The manner this position of interest is perceived and the process of choosing who occupies it varies with groups. The level of development or maturity of a group determines the process through which its leaders are selected. In most modern and large groups founded on a principles of democracy, election is applied.

ELECTION: Election is the modern and democratic process of selecting leaders through voting.

The contemporary favour of election in the choice of group leaders is based on the fact that group members willingly obey, cooperate, assist and admire leaders who they consciously elect, hence, imposed leaders do not achieve much in modern groups because members of the group relate to them with caution and suspicion.

Free and fair election produce leaders who would be accountable to people, rule in the interest of people, operate within the rule of law and be blessed with the peoples support.

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VOTING:- In a democratic society, leaders are selected through voting. It is not all citizens that are qualified to vote. The individual's right to vote and be voted for is known as "franchise or suffrage" and is determined by a number of factors as follows.

1. Age:- Eighteen years (18) is the age set by the Constitution of the federal republic of Nigeria for every citizen to exercise their franchise.

2. Mental Health:- No society permits citizen that are not mentally sound to participate in elections.

3. Citizens Status:- Various societies have different categories of citizens whose status determines their rights.

TYPES OF VOTING

- SECRET VOTING:- This type of voting allows the voter a level of privacy and control over his franchise. In other words, the voter cast his vote secretly, outside the knowledge of others and voter never also victimized even when a person he did not vote for wins the election.

- OPEN VOTING:- With this method, the voter cast his vote publicly and this followed by public counting and tallying.

of votes cast. Often it is done by the voters queuing publicly behind the person or representative of their choice.

TYPES OF ELECTION

Basically there are two types of election.

— DIRECT ELECTION: here the electors ~~choose~~ ^{select} and cast their votes directly in the ~~representation~~ ^{representation} of their representatives. Direct election gives citizens a sense of belonging and participation, confers legitimacy on those elected and makes the entire electoral process very democratic. However direct election has its own problems, it is very expensive and cumbersome, produces weak leadership and often does not allow the real candidates to emerge.

— INDIRECT ELECTION: This entails the selection of leaders by a group of people assume to be true representatives of the people who themselves must have been elected initially by the people they are representing. For instance a parliament could choose to select its Rector through an election indirect election. First elections at various departmental level. i.e. for representation at the school level then at the school level representatives are selected who now represent the whole parliament in choosing

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a vector.

This system does not permit the entire citizens a free participation in political and electoral process hence it denies citizens their franchise and is seen as discriminatory.

Elections however can be further classified into the following.

1. General election
2. Bye-election
3. Referendum election
4. Alternative election
5. Electoral College system.

ELECTORAL COMMISSION

This is an institution or body established by government or law and given the responsibility to organize and conduct election in a country.

The electoral Commission should have the following characteristics.

1. It is independent of government control.
2. Members are politically neutral
3. It is impartial in all of its dealings
4. It is funded by the consolidated fund of the state
5. It regulates the activities of political parties.
6. It handles elections in a country.

4.6 IMPORTANCE OF POLITICAL PARTIES IN AN ELECTION

The functions of political parties are as follows.

1. Ensuring that Cabinet members are loyal, party members who uphold party philosophy and are subject to discipline
2. Soliciting the public on party's programme.
3. Setting preps platforms for party members to campaign for political office and win
4. Ensuring that the public is electorates are politically aroused and well informed before election.
5. Bridging political gaps as seen among party members and members of the public as caused by variations in ethnic, tribal and geo-political factors.

4.7 THE NEED FOR FREE AND FAIR ELECTION

The aim of every democratic election is to achieve freedom and fairness in election process. In absolute terms, this goal has often failed in many countries of the world due to known limitations in human and material resources. We are of the view that it is possible to achieve a free and fair election but even with the most democratic

Callly advanced countries of the world much
is still needed to be done.

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FUNCTIONS OF THE LEGISLATURE, THE EXECUTIVE AND THE JUDICIARY.

LEGISLATURE

(1) Law making function :- the legislature has the traditional function of making of laws for the entire country. The members have powers to amend the constitution of a country where necessary.

(2) Semi-judicial function :- the house of lords (senate) as the case in the Britain and Canada serves as both law making and court of appeal. There, it is performing judicial function.

(3) The control of the activities of the executive and other branches of government through the legislative investigation committee. Inefficient or shady ministers and other public office holders are often invited to the floor of the house to defend themselves.

(4) Control and approval of government expenditure and revenue. Before any appropriation bill is passed the national assembly has to authorise the executive to raise taxes, collect them and approve them before any money will be spent.

(5) Approval of senior appointments :- the national assembly, namely the senate, approves the senior appointments made by the president of the country, before they assume office.

(6) Approval of international treaties :- the legislature gives consent or approves most of the foreign negotiations in the country.

(7) The legislature makes law for establish-

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ment of government Corporations or parastatals.

EXECUTIVE

The executive is also called the Cabinet. It is formed and headed by the President of the country. In a presidential system of government, the major functions of the executive is administration and implementation of the law.

(1) Implementation of the law:- The executive implements laws passed by the legislature. The executive performs that through different ministries and departments, through the assistance of career civil and public servants.

(2) Formation of policies:- The executive formulates the general policies of government and people may praise or criticise such policies.

(3) The executive signs international agreement or treaties between his country and other countries, but with the approval and consent of the legislature.

(4) General administration:- The executive co-ordinates the activities of the ministries and parastatals by supervising their performance and functions.

(5) Maintenance of law and order:- executive maintains law and order in the civil society.

(6) Ceremonial functions:- The president receives ambassadors, heads of states and other dignitaries that come for visiting.

(7) preparation of budget:- the legislature

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prepares yearly budget and sends it to the legislature for approval before presenting or passing into law.

(3) Strategic appointments: the chief executive appoints his ministers, ambassadors etc subject to approval by the legislature.

Judiciary

→ This is the third ~~organ~~ of the government.

Judges, Magistrates, Grand Kheradis, state counsel etc are members of the judicial organ.

(1) Settling disputes: - Judiciary settle case between individuals, states or communities.

(2) Interpretation of laws: - Courts interpret the law and the constitution of a country and state how they could be applied.

(3) Safe-guarding the rights of citizens: - the Judiciary is the last hope of the ordinary man, therefore the aggrieved person can go to Court to seek redress. If is the duty of the Court to see to it that justice ~~is~~ prevails.

PRINCIPLES OF SEPARATION OF POWER AND CHECKS AND BALANCES

Separation of power: - the concept originated in 1748 in one of Montesquien's work "Esprit des lois" meaning the spirit of laws. He divided government powers into three different branches namely: the legislative, the executive and the judicial. In order to guarantee the liberty of citizens, each

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functions of government has to be exercised by a separate organ of government. The legislature is charged with the only legislative function, the executive with executive functions and the judiciary with judicial functions. He maintained that three individuals or bodies acting independently will bring harmony in the society.

Separation of power is necessary to ensure liberty and freedom in the society. Powers should not be concentrated in the hands of one person or group of persons because it will lead to tyranny and oppression. Separation of power is more evident in a country a federal system of government.

Checks and Balances :- One of the effective ways of keeping the three governmental powers separate is to ensure that no one serves simultaneously in more than one arm of government. This will enable a proper check and balance on the power exercise by the different arms.

The legislature can check the judiciary by refusing to approve judges newly appointed. It can sack a judge who is not capable but only if the president of a country recommends the termination of the appointment of such a judge.

On the other hand, the executive organ has the power to refuse to sign into law a bill presented to the president by the joint Committee of the house of the Assembly (Senate and Reps)

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The judicial arm can check members of the house by declaring null and void a law made by members of the parliament. The judiciary can check the executive organ by declaring an act badly carried out by the President as ultra vires (meaning beyond his powers).

The executive arm can check the judiciary by refusing to appoint the judges and magistrates that constitute the judiciary organ, which is done by the president on behalf of the executive arm.

THE PROCESS OF ELECTION AND REMOVAL OF THE EXECUTIVE AT THE THREE LEVELS OF GOVERNMENT

Section 180 and 141 of the 1999 Constitution provides for the office of the president and vice president. A person contesting for the position of a president must attain the age of 40 and must be a Nigerian by birth, a member of a political party sponsored by the party. Minimum level of certificate required is the school certificate or its equivalent. A person who have been elected to the office twice in previous elections cannot stand again for another election.

In the event of gross misconduct in the performance of the functions of his office, the president could be removed from office even before he completes his term. Section 143 of the 1999 Constitution stipulates the procedure for removal of the president or vice from his office.

Firstly, there ~~must~~ has to be written

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allegation of gross misconduct against the holder of the office signed by not less than one third of five members of the national assembly and presented to the president of the senate.

Secondly within seven days of the receipt of the allegation, the president of the senate shall cause notice of the allegation ~~to~~ to be served on the office holder and on each member of the national assembly together with any statement of reply by the accused.

Thirdly each house of the national assembly shall within fourteen days (14) of presentation of notice to the president of the senate resolve by motion without any debate whether or not the allegation shall be investigated.

Fourthly if the national assembly is a motion supported by at least two-thirds majority of all members of two house moves that the allegation shall be investigated, the chief justice of nigeria shall at the request of the president of the senate appoint within seven days seven members of unquestionable integrity investigate the allegation.

Fifthly where the panel report the allegation has been proved and national assembly supported by not less than ~~four~~ two-thirds majority of its members, then the holder of the office shall stand removed from the office and the removal cannot be questioned in court. Where the president is removed the vice president

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takes the functions of the president

→ The procedure of removal of chief executive of a state (Governor) or his deputy from his office is the same with that of the president. The only difference is that the proceedings is in the state house of assembly; the speaker of the house receives and serves the notice of the allegation and the chief judge of a state appoints the seven men Committee of investigation at the request of the speaker.

COMPONENTS OF THE NIGERIAN JUDICIAL SYSTEM

Judicial powers in Nigeria, both of federal and states are vested in the courts and the power of dispensing justice by the legal trial in Nigeria is entrusted into the hands of a body of judges operating in a well established system of courts. There are

three types of courts namely; Supreme Court of Nigeria, the court of Appeal and the Federal High Court. Both are set up as federal courts. For states, the Constitution makes provision ~~for~~ for a State High Court, Sharia Court of Appeal and Customary Court of Appeal. The national assembly can make laws to establish more federal courts. The state house of assembly can exercise similar power in a state. That is why in addition to the courts mentioned in the Constitution, there are many states courts including the various grades of magistrates courts and customary courts, Sharia courts

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Area Courts and Alkali Courts. The Sharia Courts are common to some States in ~~some~~ Northern part of Nigeria where there exist a large muslim population.)

CODE OF CONDUCT FOR PUBLIC OFFICERS

The Code of Conduct for public office holders simply mean written rules and regulations to guide them in the Conduct of their work. It is to serve as weapon of enforcing the Constitutional provision of Nigeria which states that "the state shall abolish all corrupt practices and abuse of power". It is generally believed that the Code is capable of removing and reducing or total elimination of the vices of corruption, abuse of office, bribery and pettibility in the exercise of public duties.

Below are the list of rules.

(1) A public officer can only receive at a time the salary and allowance of one public officer, no duplication of salary.

(2) The president, vice president, governor, deputy governor, ministers etc are totally prohibited from operating a foreign bank account.

(3) A public officer should not ask for or except any property, gift, benefits or any kind for discharging his duties, however he can accept personal gifts or benefits from relatives or personal friends to the extent that Customs recognises.

(4) A public officer should submit a written declaration of all his properties

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assets and liabilities and those of his spouse, or unmarried children under the age of eighteen to the Code of Conduct Bureau at the end of every four years and at the beginning of his term in office.

